

25AVCV01268 25AVCV01268

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Case Number: 25AVCV01268 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

ASHOT NIKOGHOSYAN,

Plaintiff,

v.

DATA MORTGAGE, INC., dba ESSEX MORTGAGE; CLEARVIEW REAL ESTATE HOLDINGS, LLC, and DOES 1 through 50, inclusive,

Defendants.

Case Number 25AVCV01268

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a case arising from the foreclosure of real property previously owned by Ashot Nikoghosyan.

On September 29, 2025, Plaintiff Ashot Nikoghosyan (Plaintiff) filed his complaint against Defendants Data Mortgage, Inc., dba Essex Mortgage (Data Mortgage) and Clearview Real Estate Holdings, LLC (Clearview) (collectively Defendants). Plaintiff asserts seven causes of action for (1) wrongful foreclosure, (2) cancellation of notice and notice of default and notice of trustee sale, (3) declaratory relief, (4) injunctive relief, (5) violation of the homeowner bill of rights, (6) unfair business practice, and (7) breach of the implied covenant of good faith and fair dealings. Plaintiff only asserts causes of action three and four against Clearview.

Specifically, Plaintiff alleges that at all relevant times, he was the registered owner of real property located at 8546 Calva Street, Leona Valley, California 93551-7230 (Property) pursuant to a Grant Deed executed on July 18, 2022. (Compl., ¶ 1.) On or about September 2, 2022, Plaintiff secured a \$795,636.00 loan from GenHome Mortgage Corporation (GenHome) and executed a Deed of Trust in favor of GenHome (Trust Deed), naming Stewart Title of California, Inc. (Stewart Title) as trustee, Mortgage Electronic Registration Systems, Inc. (MERS) as beneficiary, and GenHome as the lender. (Compl., ¶ 11.) On or about August 28, 2024, America West Lender Services, LLC (America West), acting as trustee for Data Mortgage on the Trust Deed, recorded a Notice of Default against the Property with the Los Angeles County Recorder's Office, which indicated that Plaintiff was delinquent in the amount of \$57,060.64, (Compl., ¶ 12.)

Plaintiff claims the recording of the Notice by America West was invalid and ineffective because America West was not named in the Trust Deed as a party authorized to record the notice and America West was not substituted as new trustee in place of Stewart Title. (Compl., p. 4:19-22.) On August 19, 2025, America West sold the Property at a public auction and a Trustee's Deed Upon Sale was recorded with the Los Angeles County Recorder's Office conveying title of the Property to Clearview. (Compl., ¶ 20.) On September 15, 2025, Clearview posted a Notice to Quit on the Property. (Compl., ¶ 21.) Plaintiff asserts that Data Mortgage committed a number of procedural and substantive statutory violations rendering the foreclosure notices defective. (Compl., ¶ 24.) The Court notes that it appears page five of the Complaint appears to be missing in its entirety, and thus, the contents of page six lack necessary context.

On October 2, 2025, Plaintiff filed a Notice of Lis Pendens on the Property.

Plaintiff served Clearview with summons and complaint by substituted service on January 12, 2026. No proof of service of summons and complaint has been filed as to Data Mortgage, which has not yet appeared in this action.

On February 6, 2026, Clearview filed a declaration of demurring party in support of automatic extension.

On March 11, 2026, Clearview filed its demurrer to Plaintiff's third and fourth causes of action in the complaint.

On April 27, 2026, a Case Management Conference and OSC re completion of service were held, at which Plaintiff's counsel informed the Court that he has lost contact with his client.

No opposition has been filed by Plaintiff.

II. Preliminary Procedural Issues

Timeliness of Clearview's Demurrer – A responsive pleading to the complaint is due within 30 days of service of the plaintiff's moving papers. (Code Civ. Proc., §412.20, subd. (a).) However, “[i]f the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and the demurring party shall not be subject to default during the period of the extension.” (Code Civ. Proc., §430.41, subd. (a)(2).)

Here, Clearview's demurrer was due on or before February 11, 2026. However, on February 6, 2026, Clearview filed a declaration of demurring party in support of automatic extension, stating Clearview intends to file a demurrer, motion to strike, or motion for judgment on the pleadings, but is unable to do so prior to meeting and conferring with Plaintiff. Clearview's counsel, Bradley T. Weeks, stated he had been unable to meet and confer despite good faith attempts, including calling Plaintiff's counsel, David Yadidi on January 30 and February 3, 2026, and leaving a message requesting a call regarding the issues to be raised on demurrer. Weeks also stated counsel scheduled a meet and confer call for February 6, 2026 by email, but Yadidi was again unavailable when Weeks called. This was the first automatic extension in this case.

Thus, Clearview's declaration in support of an automatic extension is procedurally proper, and the demurrer became due on or before March 13, 2026. Accordingly, Clearview's demurrer is timely.

Meet and Confer Requirement – Before filing a demurrer, the demurring party is required to meet and confer at least five days before the date the responsive pleading is due, in person, by telephone, or by video conference, with the party who filed the pleading demurred to for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve with the demurrer a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading demurred to failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Here, Clearview has satisfied the meet and confer requirement. Clearview's counsel, Weeks, submitted his declaration, in which he sets forth the facts as outlined above regarding his good faith meet and confer efforts. On three dates, January 30, 2026, February 3, 2026, and February 6, 2025, Weeks called Yadidi, who was unavailable.

Accordingly, the Court finds the meet and confer requirement is satisfied.

III. Request for Judicial Notice

Clearview requests that the Court take judicial notice of seven documents: (1) Deed from Aram Movslysyian to Ashot Nikoghosyan, (2) Deed of Trust by Ashot Nikoghosyan, (3) Assignment Deed of Trust, (4) Substitution of Trustee, (5) Notice of Default, (6) Notice of Trustee's Sale, and (7) Trustee's Deed. (RJN, p. 2:19-27; Weeks RJN Decl., ¶¶ 4-10.)

California Evidence Code section 452 permits judicial notice being taken of facts and propositions not reasonably subject to dispute and capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (Evid. Code., § 452, subd. (h).) California Evidence Code section 453 mandates a court take judicial notice of a matter specified in section 452 if a party so requests, gives the adverse party sufficient notice through pleadings or otherwise, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code, § 453, subd. (a), (b).)

A Court may properly take judicial notice of recorded documents. (Md. Casualty Co. v. Reeder (1990) 221 Cal.App.3d 961, 977; Evans v. California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 549 (overruled in part on other grounds) [courts may take judicial notice of recorded deeds].) The Court may take judicial notice “not only of the existence and recordation of recorded documents but also of a variety of matters that can be deduced from the documents.” (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 265 (overruled in part on other grounds).) In Poseidon Development, Inc. v.

Woodland Lane Estates, LLC (2007) 152 Cal.App.4th 1106, “the court affirmed the trial court’s taking of judicial notice in sustaining a demurrer of the parties, dates, and legal consequences of a series of recorded documents relating to a real estate transaction. [Citation.] Although the court recognized that it would have been improper to take judicial notice of the truth of statements of fact recited within the documents, the trial court was permitted to take judicial notice of the legal effect of the documents’ language when that effect was clear. [Citation.]” (Fontenot, supra, 198 Cal.App.4th at 265.)

However, while the Court may take judicial notice of the legal effect of a recorded document where it is clear and not subject to reasonable dispute, the Court may not take judicial notice of factual matters stated therein. (Poseidon, supra, 152 Cal.App.4th 1106, 1117; see also Yvanova v. New Century Mortgage Corp. (2016) 62 Cal.4th 919, 943, fn. 1 [notice of recorded documents are subject to mandatory judicial notice on proper request of a party, but not of disputed or disputable facts stated therein]; Herrera v. Deutsche Bank National Trust Co (2011) 196 Cal.App.4th 1366, 1375 [judicial notice of hearsay statements subject to reasonable dispute is improper]; Panterra GP, Inc. v. Superior Court (2022) 74 Cal.App.5th 697, 709 “[t]he hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of documents whose truthfulness or proper interpretation are disputable.”.) Thus, the Court is permitted to take judicial notice of the existence of recorded documents, undisputable facts contained therein, and the undisputable legal effect of said documents at the demurrer stage, but may not take judicial notice of factual assertions contained therein.

Here, Clearview has provided to the Court exhibits one and two, both of which were attached to the operative complaint. Clearview has also provided certified copies of exhibits three through seven. All of these exhibits have been recorded with the Los Angeles County Recorder’s Office. (Weeks RJN Decl., ¶ 3.) Furthermore, a valid proof of service has been filed and Clearview has provided sufficient notice of the request to Plaintiff through its moving papers.

Accordingly, Clearview’s request for judicial notice is GRANTED, and the Court will consider the information contained and effects of these documents only to the extent permitted as described above. The Court preliminarily notes that the lack of an opposition does not permit the Court to assume Plaintiff’s position is an admission or concession of any fact stated therein, and any disputable facts are not subject to judicial notice.

IV. Legal Standard

Standard for Demurrer – A party against whom a complaint has been filed may object by demurrer to the pleading on the ground that the pleading does not state facts sufficient to constitute a cause of action. (Cal. Code Civ. Proc., § 430.10, subd. (e).) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations reasonably, liberally, and in context. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) Courts must “treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (Blank, supra, 39 Cal.3d at 318.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) The threshold for meeting this burden is low, and “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

V. Discussion

Application – Clearview individually demurs to Plaintiff's third and fourth causes of action on the grounds that each fails to state facts sufficient to constitute a cause of action pursuant to California Code of Civil Procedure section 430.10, subdivision (e). (Statement of Demurrers, ¶ 1-2.)

a. Third Cause of Action – Declaratory Relief

Plaintiff's third cause of action is based on allegations that foreclosure proceedings commenced by Data Mortgage through America West were invalid and ineffective because neither had legal standing to commence foreclosure proceedings against the Property. (Compl., ¶ 33.) Specifically, Plaintiff claims that GenHome was the proper and rightful party to commence foreclosure proceedings, not Data Mortgage, and that America West was not the trustee with authority to exercise powers of the trustee named in the GenHome Trust Deed. (Ibid.) Plaintiff alleges that no substitution of trustee was filed or recorded prior to or at the time the Notice of Default was recorded. (Compl., p.4:22-25.) Plaintiff's third cause of action seeks a judicial determination that the notices recorded by Data Mortgage through America West, and the Trustee's Deed Upon Sale recorded by Clearview, are invalid and ineffective. (Id. at ¶ 34.)

Clearview argues that there is no controversy as to the third cause of action because both the beneficiary and trustee under a deed of trust may initiate foreclosure proceedings, and at the time of initiation of foreclosure proceedings, the beneficiary was Data Mortgage Inc. (Demurrer, p. 4:22-5:4.)

As discussed above, the Court may take judicial notice of the legal effect of a recorded document when the legal effect is not itself, and is not based upon, statements or contentions of fact therein which are reasonably subject to dispute. In support of its argument, Clearview first provides the original Trust Deed between Plaintiff as trustor, GenHome as lender, Stewart Title as trustee, and MERS as beneficiary. (Weeks RJN Decl., ¶ 5, Ex. 2, p. 1-2.) The Trust Deed is executed and notarized with Plaintiff's signature, and Plaintiff's complaint affirms the validity of the Trust Deed provided. (Compl., ¶ 11-13.) The Court finds that the legal effect of the Trust Deed is not subject to reasonable dispute, and as such, the legal consequences of the Trust Deed are judicially noticed to the extent that it establishes Plaintiff as trustor, GenHome as lender, Stewart Title as trustee, and MERS as beneficiary.

Clearview claims on July 9, 2024, MERS assigned its beneficial interest under the Trust Deed to Data Mortgage. (Weeks RJN Decl., ¶ 6, Ex. 3, p. 2.) The certified copy of the Assignment of Trust Deed establishes that it was recorded on July 9, 2024, and states, in relevant part, "FOR VALUE RECEIVED, the undersigned assignor ("Assignor"): Mortgage Electronic Registration Systems, Inc. [MERS], as beneficiary, as nominee for GenHome Mortgage Corporation, its successors and assigns, whose address is P.O. Box 2026 Flint, MI 48501-2026, does hereby grant, bargain, assign, transfer and convey to the following assignee ("Assignee"): Data Mortgage, Inc., DBA Essex Mortgage whose address is 1417 North Magnolia Road, Ocala, FL 34475. All of Assignor's right, title, and interest under a certain Mortgage, dated August 29, 2022, made and executed by Ashot Nikoghosyan, to [MERS], as nominee for [GenHome], its successors and assigns, recorded on September 2, 2022 in Instrument Number 20220873797, Los Angeles County, California." The Assignment is also signed and notarized by John Jones, identified as Assistant Secretary for MERS as beneficiary, as nominee for GenHome.

"A recorded assignment of note and deed of trust vests in the assignee all of the rights, interests of the beneficiary [citation] including authority to exercise any power of sale given the beneficiary [citation]."

(Strike v. Trans-West Discount Corp. (1979) 92 Cal.App.3d 735, 744.) The legal effects of this assignment are clear and not subject to reasonable dispute, nor based on statements or allegations of fact subject to reasonable dispute. Accordingly, the Court takes judicial notice of the date and time of recordation, the parties involved in the assignment, and the legal effect of the assignment in assigning MERS's beneficial interest under the trust deed to Data Mortgage, effective on July 9, 2024.

Clearview asserts that on August 26, 2024, Data Mortgage substituted America West as trustee under the deed of trust. (Weeks RJN Decl., ¶ 7, Ex. 4, p. 4.) The certified copy of the Substitution of Trustee establishes that it was recorded on August 26, 2024, and lists MERS as the original beneficiary as nominee for GenHome, Data Mortgage as the current beneficiary, and Stewart Title as the original trustee. (Id at p. 3.) The Substitution of Trustee states, in relevant part, “The beneficiary, pursuant to the terms of and authority granted under the deed of trust, hereby substitutes America West Lender Services, LLC, whose address is 5404 Cypress Center Drive, Suite 300, Tampa, FL 33609, as successor trustee under the deed of trust with all powers of the original trustee.” (Id at p. 4.) The document is dated August 23, 2024, signed by Gwenna Sturdivant, who is identified as Assistant Secretary of Data Mortgage, and is notarized.

California Civil Code section 2934a, subdivision (a)(1)(A) states that a trustee under a trust deed upon real property may be substituted by the recording, in the county in which the property is located, of a substitution, executed and acknowledged by all beneficiaries under the trust, or their successors in interest, and the substitution shall be effective notwithstanding any contrary provision in any trust deed executed on or after January 1, 1968. Here, a substitution was recorded in Los Angeles County, in which the subject Property is located, and is executed by Data Mortgage, the beneficiary. The legal effects of this substitution are clear and not subject to reasonable dispute, nor based on statements or allegations of fact subject to reasonable dispute. Accordingly, the Court takes judicial notice of the date and time of recordation, the parties involved in the substitution, and the legal effect of the document in legally substituting America West as the successor trustee under the Trust Deed with all powers of the original trustee.

Clearview also notes the Notice of Default, which was recorded by America West on August 29, 2024. (Weeks RJN Decl., ¶ 8, Ex. 5, p.2.) The document states the date and time the Notice was recorded and states that America West “is either the original trustee, the duly appointed substitute trustee, or acting as agent for the trustee or beneficiary under a Deed of Trust dated 08/29/2022, executed by: Ashot Nikoghosyan, an unmarried man, as Trustor(s) to secure certain obligations in favor of [MERS], as beneficiary, as nominee for [GenHome] its successors and assigns as Beneficiary, recorded 09/02/2022.” (Weeks RJN Decl., ¶ 8, Ex. 5, p. 3.) The Court notes the existence of the recorded Notice, the date and time of the recordation, the parties involved, and the legal effect to the extent that it establishes that a Notice of Default was recorded by America West as trustee in favor of all assigns as beneficiary and against Plaintiff.

The three steps to complete a nonjudicial foreclosure of real property are, in chronology: (1) recording and service of the notice of default, providing the borrower no less than three months to reinstate the loan, (2) setting the sale date of the real property and providing notice of the sale within 90 days of the recording of default, and (3) placing the property up for auction. (Cal. Civ. Code, § 2924, subd. (a), § 2924b, § 2924g.)

Here, the foreclosure proceedings were initiated on or around August 29, 2024, when America West recorded the Notice of Default. On this date, the Court finds that it is undisputable that under the Trust Deed, Plaintiff was the trustor, America West was the trustee, and Data Mortgage was beneficiary. On July 11, 2025, America West issued and recorded a Notice of Trustee's sale as required. (Weeks RJN Decl., ¶ 9, Ex. 6.) The Property was sold at auction on or around August 19, 2025, to Clearview and a Trustee's Deed Upon Sale was issued by America West on September 9, 2025, and recorded on September 12, 2025. (Weeks RJN Decl., ¶ 9, Ex. 6; Compl., ¶ 20.)

Here, taking all of Plaintiff's factual allegations in the complaint as true, it is clear that the claims are explicitly contradicted by judicially noticed recorded documents, establishing the appropriate parties that could initiate foreclosure at the time it commenced were America West as trustee and Data Mortgage as beneficiary. The legal effects of these documents, the assignment to Data Mortgage and the substitution of America West, are not subject to reasonable dispute. Furthermore, the judicially noticeable documents clearly delineate the rights and authorities to initiate foreclosure were legally transferred to Data Mortgage and America West through their respective assignment and substitution.

Plaintiff's causes of action against Clearview are predicated on his claim that neither Data Mortgage nor America West had the authority to initiate foreclosure proceedings. Both a beneficiary and a substituted trustee have the authority to initiate the foreclosure process. (Cal. Civ. Code, § 2924, subd. (a)(6).) Thus, as substituted trustee, America West had the authority to initiate foreclosure proceedings on the Property, Clearview had the right to bid on the Property and subsequently purchase the Property from America West, and the claims upon which Plaintiff asserts his third cause of action for declaratory relief fail as a matter of law. Plaintiff sets forth no separate or additional allegations sufficient to maintain this cause of action for declaratory relief against Clearview as purchaser.

Accordingly, Clearview's demurrer to Plaintiff's third cause of action is SUSTAINED.

i. Leave to Amend

As set forth above, leave to be amend must only be allowed where there is a reasonable possibility of successful amendment, and the plaintiff bears the burden of showing the court the pleading can be amended successfully. (Goodman, supra, 18 Cal.3d 335, 348; Lewis, supra, 244 Cal.App.4th 118, 226.)

Here, Plaintiff did not file any opposition to the present motion or provide any argument as to how successful amendment is reasonably possible. Furthermore, "[a] trial court may properly sustain a general demurrer to a declaratory relief action without leave to amend when, as here, the controversy presented can be determined as a matter of law" or when a plaintiff seeks a declaration of rights to which he is legally not entitled. (City of Fresno v. Cal. Highway Com. (1981) 118 Cal. App. 3d 687, 699; Childhelp, Inc. v. City of Los Angeles (2023) 91 Cal.App.5th 224, 236.) In Brown v. Deutsche Bank National Trust Co. (2016) 247 Cal.App.4th 275, the Court found that the trial court did not err in sustaining a demurrer without leave to amend where the plaintiff failed to sufficiently allege the company that initiated foreclosure proceedings lacked authority to do so. (Brown, supra, 247 Cal.App.4th at 280.) The Brown Court noted in its ruling that the plaintiff's briefing failed to clearly identify the allegations relied upon in support of her claim that the initiating company lacked authority to initiate foreclosure proceedings, and that her allegations relied on to support her theory were contradicted by judicially noticed documents establishing said authority. (Id at 282.)

As in Brown, Plaintiff has failed to sufficiently identify the allegations relied upon to support his claim that America West did not have the authority to initiate foreclosure on the Property. Plaintiff's claims that America West was not a trustee, that no substitution of trustee had been filed prior to initiation of proceedings, and that Data Mortgage was not a beneficiary are directly contradicted by undisputable, judicially noticeable evidence.

"The fundamental basis of declaratory relief is the existence of an actual, present controversy over a proper subject." (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 79.) Here, as has been established, America West had a legal right to initiate foreclosure proceedings, Plaintiff has set forth no additional arguments to support his third cause of action, and there is no actual, present controversy over a disputable subject, fact, or allegation.

Accordingly, Clearview's demurrer to Plaintiff's third cause of action is sustained without leave to amend.

b. Fourth Cause of Action -- Injunction

Plaintiff's fourth cause of action alleges Data Mortgage and Clearview deceitfully and fraudulently schemed to deprive Plaintiff of his right, title, and interest in the Property by posting a Notice to Quit and demanding Plaintiff and his tenants move out of the Property within three days. (Compl., ¶ 37.) Plaintiff thus requests that Defendants be enjoined or otherwise restrained from proceeding with attempts to evict Plaintiff and his tenants. (Compl., ¶ 38-39.)

In California, the law is clear that "[i]njunctive relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief may be granted." (Shell Oil Co. v. Richter (1942) 52 Cal.App.2d 164, 168.) Sustaining a demurrer as to a cause of action for injunctive relief is proper, as an injunction is not a cause of action. (Allen v. City of Sacramento (2015) 234 Cal.App.4th 41, 48, 65.)

Even taking the above contentions as true, Plaintiff's fourth cause of action requests only a form of relief and does not assert an individual cause of action.

Accordingly, Clearview's demurrer to Plaintiff's fourth cause of action is SUSTAINED.

i. Leave to Amend

As set forth above, leave to be amend must only be allowed where there is a reasonable possibility of successful amendment, and the plaintiff bears the burden of showing the court the pleading can be amended successfully. (Goodman, supra, 18 Cal.3d 335, 348; Lewis, supra, 244 Cal.App.4th 118, 226.)

Here, Plaintiff did not file any opposition to the present motion or provide any argument as to how successful amendment is reasonably possible. The fourth cause of action only requests a form of relief, and the Court finds no reasonable possibility of amendment to cure this defect.

Accordingly, Clearview's demurrer to Plaintiff's fourth cause of action is sustained without leave to amend.

VI. Conclusion

Defendant Clearview Real Estate Holdings, LLC's unopposed Demurrer to Plaintiff's Third and Fourth Causes of Action is SUSTAINED without leave to amend.